

In T. 1188/15 the skilled person had no requirement to interpret the claim in a more limited sense in the light of a specific embodiment of the description to which the claim was not limited, the claim itself imparting a clear and credible technical teaching to the skilled reader.

In T. 1691/11 claim 1 of all requests included the features of "at least two independent programmable motors" and "at least one of the transferring devices being coupled to each of the programmable motors". These features were clear and unambiguous. The clear linguistic structure of the claim did not allow for any different interpretation. Additionally, a discrepancy between the claims and the description was not a valid reason to ignore the clear linguistic structure of a claim and thus to interpret the claim differently (see also T. 431/03). When the wording of a claim is perfectly clear it needs to be considered under Art. 83 EPC, rather than undertaking another speculative interpretation of the claim.

T. 2182/11 concerned the second aspect of the appellant's (opponent's) objection relating to the alleged impossibility of carrying out the claimed invention over the whole range claimed because of the vague claim language. The board had in particular stated in its preliminary opinion that the expression "register with" was very broad. The board stated that breadth of an expression was really a matter concerning the clarity requirement of Art. 84 EPC rather than a ground for opposition. In as far as the objection was to be considered under Art. 83 EPC, the mere fact that a **term is broad** does not prevent a skilled person from carrying out the invention.

8.2. Article 83 EPC and clarity of claims

If it is argued that insufficiency arises from a lack of clarity, it is generally not sufficient to establish a lack of clarity of the claims in order to establish lack of compliance with Art. 83 EPC 1973. Rather, it is necessary to show that the patent as a whole (i.e. not only the claims) does not enable the skilled person – who can avail himself of the description and his common general knowledge – to carry out the invention (see T. 1811/13, T. 646/13).

There is now a clearly predominant opinion among the boards that the definition of the "forbidden area" of a claim should not be considered as a matter related to Art. 83 and 100(b) EPC (T. 1811/13, T. 646/13). Decision T. 626/14 does not call this into question, according to the board in T. 250/15.

When undefined parameters are used in the claims and no details of the measuring methods are supplied, the question arises whether there is a problem with respect to Art. 83 or Art. 84 EPC. The answer to this question is important because in opposition proceedings the patent can be examined for its compliance with Art. 83 EPC without any restriction. Compliance with Art. 84 EPC is however examined only in cases where there has been an amendment. In its decision G. 3/14 (OJ 2015, A102) the Enlarged Board reiterated the principles governing the extent to which patents amended in opposition proceedings can be examined for compliance with Art. 84 EPC. A more detailed account of its decision can be found in chapter II.A.1.4.

T 1845/14 (broadness of the claim arising from lack of clarity and sufficiency) specified that the ambiguous definition of a parameter in a claim may result in the scope of the claim to be broader than the patentee might have intended. In such a case the question arises whether the teaching of the patent in suit, which was directed to the claimed subject-matter having regard to a specific meaning of that parameter (which, however, was omitted), would nevertheless have enabled the skilled person to carry out the invention outside of the scope intended by the patentee, using common general knowledge and a reasonable amount of experimentation.

8.2.1 Minority – or earlier – case law

In some decisions (for example, T 123/85, T 124/85, T 172/87, T 358/88, T 449/90, T 148/91, T 267/91, T 697/91, T 225/93, T 378/97, T 387/01, T 252/02, T 611/02, T 464/05, see recently T 626/14) the absence of information in the application on methods for measuring undetermined parameters in the application was considered a problem with respect to Art. 83 EPC.

8.2.2 Majority case law

To provide a quick overview of the law applicable at present, the currently predominant approach is set out in the first section. However, it should be borne in mind that the debate around this issue has still been ongoing in relatively recent case law (see in this chapter II.C.8.2.2c).

a) Currently predominant approach

Two decisions in particular have affirmed the applicable law, setting out the now predominant approach after summarising and analysing the case law to date: T 1811/13 (decision in English - lack of clarity vs. insufficiency of disclosure) and T 647/15 (decision in French). An example of a decision in German is T 548/13.

While these decisions were not the first (see e.g. T 2290/12) to take the approach currently applied by the majority of the boards, their findings are taken here to illustrate the point.

The approach is as follows: "today there is agreement or at least a clearly predominant opinion among the boards that the definition of the "forbidden area" of a claim should not be considered as a matter related to Art. 83 EPC." The board added that: "This is not to say that a lack of clarity cannot result in an insufficient disclosure of the invention. However, in such a case it is not sufficient to establish that a claim lacks clarity, but it is necessary to establish that the application or patent, as the case may be, does not disclose the invention in a manner sufficiently clear and complete for it to be carried out by a person skilled in the art. In other words, it is not sufficient to establish a lack of clarity of the claims for establishing lack of compliance with Art. 83 EPC 1973; it is necessary to show that the lack of clarity affects the patent **as a whole** (i.e. not only the claims) and that it is such that the skilled person – who can avail himself of the description and his common general knowledge – is hindered from carrying out the invention".

As already stated, these decisions are not the first ones that represent the currently applied approach. Examples of decisions prior T 1811/13 that also follow the current majority approach: T 1948/10, T 608/12, T 2331/11, T 1507/10, T 943/00, T 960/98, T 619/00, T 396/02, T 1033/02, T 452/04, T 466/05, T 1586/05, T 1015/06, T 1250/08, T 593/09, T 1507/10, T 2331/11, T 2290/12, T 647/15, T 548/13, T 466/05, T 2290/12, T 1886/06, T 1608/13, T 608/07.

The decision in T 608/07 (hidden objection) is very often cited (especially its point 2.5.2 of the Reasons) in the case law, including even in recent decisions, e.g. in T 786/15 (Tg parameter – ambiguity at the edges of the values); T 1627/17; T 1768/15; T 1960/14 (melting points of palm oil fraction); T 1608/13 (definition of a sieving coefficient); T 1285/15 (example of a hidden clarity objection); T 593/09 (also referring to T 815/07 and *Kirin-Amgen Inc v. Hoechst Marion Roussel Ltd* [2004] UKHL 46 of the United Kingdom's House of Lords). In T 593/09 (ill-defined parameter) the board held (see catchword and point 4.1.4 of the Reasons) that what is decisive for establishing insufficiency within the meaning of Art. 83 EPC is whether the parameter, in the specific case, is so ill defined that the skilled person is not able, on the basis of the disclosure as a whole and using common general knowledge, to identify (without undue burden) the technical measures (e.g. selection of suitable compounds) necessary to solve the problem underlying the patent at issue. The decision in T 593/09 (essential parameter for preparation of a product) is in turn frequently cited still in recent case law, e.g. T 1305/15 (Zeta potential of hollow fibre membrane – severe lack of information concerning the ZP measurement method – ill-defined parameter not reliably measurable – Art. 83 EPC not satisfied); T 1526/09 (vague definition of parameter affected clarity but did not prevent reproduction of the claimed product); T 2403/11; T 786/15.

Examples of decisions since T 1811/13 endorsing the predominant view: T 1900/17; T 2319/14; T 417/13; T 548/13.

In T 646/13 the board considered a request for a referral to the Enlarged Board filed in view of a divergence between T 1811/13 and T 464/05 but refused it on the ground that this alleged divergence instead illustrated a development in the case law.

T 626/14, which endorsed T 464/05, likewise analysed the decisions in T 1811/13 and T 464/05. The board in T 250/15 held that T 626/14 did not call the case law confirmed in T 1811/13 into question and declined to make a referral to the Enlarged Board, considering that T 626/14 and T 464/05 concerned a particular constellation in a certain technical field.

The board in T 1845/14 took issue with the approach taken in some decisions to defining the term "invention" for the purposes of Art. 83 EPC. Addressing the rationale of T 593/09, T 815/07, T 172/99 and T 608/07, it found that, although the expression "promise of the invention" in light of *Zipher Ltd v. Markem Systems Ltd* referred to in T 608/07 could be understood to correspond to the indication in the description of the patent of the technical benefits provided by the claimed subject-matter, this decision from the High Court (UK) makes clear that not fulfilling the "promise of the invention" is rather an issue of inventive step. The board in T 409/17 considered T 1845/14 and T 593/09.

b) Case law before the now established approach.

The case law prior to the two aforementioned decisions affirming that there was a predominant opinion among the boards (T 1811/13 and T 647/15) already included a number of decisions favouring the same approach. For details of these decisions and the rest of this earlier case law, readers are referred to the 9th edition of this Case Law Book (dated 2019).

c) Recent debate around the majority and minority lines of case law and alleged divergence in the case law

This section reports on decisions since T 1811/13 which have addressed the case law on the relationship between Art. 83 EPC and Art. 84 EPC and on (refused) requests for referrals of questions about this to the Enlarged Board.

The board in T 626/14 (thickness of fibrous composite – variability in measurement) considered it important to mention that T 1811/13 and T 647/15 – with essentially identical reasoning as regards Art. 83 EPC – sought to question the way in which Art. 83 EPC objections were reasoned in decisions such as T 464/05. Yet, T 1811/13 and T 647/15 themselves concentrated only on an individual aspect in T 464/05, namely "the area covered by the claim", without addressing the actual findings in that decision regarding Art. 83 EPC. T 1811/13 and T 647/15 did not cause the board in T 626/14 to see anything which would undermine the reasoning in T 464/05 concerning Art. 83 EPC. More recently in T 250/15 the board held that T 626/14 did not challenge the case law. T 250/15 declined to make a referral to the Enlarged Board and considered that T 626/14 and T 464/05 concerned a **particular constellation** in a certain technical field.

In T 646/13 the opponent's request for a referral hinged on an alleged contradiction between decisions T 1811/13 and T 464/05 on the issues of clarity of the claims and sufficiency of disclosure. The board concluded that these cases concurred in that an unclear definition of the boundaries of the claim pertained to Art. 84 EPC 1973. Application of the principles set out in decisions T 464/05 and T 1811/13 would not lead in the circumstances of T 646/13 to different results. Finally and more importantly, as explained in decision T 1811/13, decision T 464/05 forms part of a line of jurisprudence established between 2004 and 2007, not generally followed since then. There is now a clearly predominant opinion among the boards that the definition of the "forbidden area" of a claim should not be considered as a matter related to Art. 83 and 100(b) EPC 1973, the alleged contradiction between decisions T 464/05 and T 1811/13 does not exist. Rather than being in conflict, these decisions illustrate a **development of the case law** on a particular question over an extended period of time.

9. Evidence

According to established case law of the boards of appeal, a successful objection of insufficient disclosure presupposes that there are serious doubts, substantiated by verifiable facts. In inter partes proceedings, the burden of proof initially lies with the opponent, who must establish, on the balance of probabilities, that a skilled person reading

the patent, using common general knowledge, would be unable to carry out the invention. If the opponent has discharged its burden of proof and so conclusively established the facts, the patent proprietor then bears the burden of proving the alleged facts.

Indeed, a successful objection of a lack of sufficiency of disclosure presupposes that there are serious doubts, substantiated by verifiable facts (see e.g. decision T.19/90, OJ 1990, 476 and decision T.890/02, OJ 2005, 497). In order to establish insufficiency of disclosure in **inter partes proceedings**, the burden of proof is upon an opponent to establish, on the balance of probabilities, that a skilled person reading the patent, using his common general knowledge, would be unable to carry out the invention (see decision T.182/89, OJ 1991, 391).

A mere statement that one of several examples in a patent has been repeated once "exactly as described" without obtaining exactly the results claimed in the patent is in principle inadequate to discharge that burden (see also T.406/91, T.418/91, T.548/91, T.588/93, T.465/97, T.998/97, T.499/00, T.751/00 and T.967/09). Where the parties make contradictory but unsubstantiated assertions concerning facts relevant for establishing patentability and the EPO is not in a position to establish the facts of its own motion, the benefit of the doubt is given to the patent proprietor (T.72/04). If the patent contains only an example with a hypothetical experimental protocol, and this example is to be relied on for showing sufficiency, then the burden of proof lies on the patentee to show that in practice this protocol works as stated. Evidence that a variation of this protocol works is unlikely to be enough (T.792/00). However, the patent at issue in T.397/02 disclosed a specific humanised version of a mouse antibody and also many specific alternatives thereof. The case was therefore not comparable to T.792/00 (or T.984/00) where not a single specific example of the claimed subject-matter was disclosed. Thus the appellant-opponent bore the burden of proving that the invention could not be carried out.

9.1. Consequences of a strong or weak presumption for sufficiency of disclosure

The board in T.63/06 (see "headnote") agreed that the opponent generally bears the burden of proving insufficiency of disclosure. When the patent does not give any information as to how a feature of the invention can be put into practice, only a weak presumption exists that the invention is sufficiently disclosed. In such a case, the opponent can discharge his burden by plausibly arguing that common general knowledge would not enable the skilled person to put this feature into practice. It is then up to the patent proprietor to prove the contrary, i.e. that the skilled person's common general knowledge would enable him to carry out the invention (for a more recent example, see T.338/10, in which the board found that the opponent's reasoned arguments had shifted the **burden of proof**, and, to the same effect, T.518/10; compare also with T.792/00, point 9 ff of the Reasons (burden of proof in case of a hypothetical experimental protocol)).

In T.491/08 the board, referring to T.63/06 held that a presumption exists that, in general, a patent application relates to an invention which is disclosed in a manner sufficiently clear and complete for it to be carried out by a person skilled in the art. The weight of arguments and evidence required to rebut this presumption depends on its strength. A strong presumption requires more substantial arguments and evidence than a weak one. If a